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Performance Task:

Chosen Legal Case: Facebook–Cambridge Analytica Data Breach

Summary:

The Facebook–Cambridge Analytica case involved the unauthorized harvesting of personal data from over 87 million Facebook users by the political consulting firm Cambridge Analytica. The data was collected through a personality quiz app developed by a researcher, which claimed to be for academic purposes but secretly transferred user data, including that of users' friends, to Cambridge Analytica. This information was then used to create psychological profiles and targeted political advertisements during the 2016 U.S. presidential election and the Brexit referendum. The scandal revealed major weaknesses in Facebook's data privacy oversight and its handling of third-party application access. As a result, Facebook faced heavy regulatory scrutiny, public criticism, legal investigations, and fines, including a \$5 billion penalty from the U.S. Federal Trade Commission for privacy violations.

1. Was the cause of the case valid?

Yes, the cause of the case was valid because there was clear evidence showing that Cambridge Analytica collected and used personal data without the users' permission. The data harvesting method violated Facebook's policies and user privacy laws because users were not informed that their information would be used for political profiling. Additionally, internal documents and whistleblower testimony supported claims that Facebook failed to properly regulate third-party data access. This evidence proved that the breach was not accidental but a result of negligence and intentional misuse. Therefore, the arguments presented were reasonable and well-supported by documented proof.

2. Was the result reasonable?

The result of the case was reasonable as Facebook was fined and held accountable for failing to protect user data. The \$5 billion fine imposed by the FTC served as both punishment and a warning to other tech companies about the seriousness of data privacy responsibilities. It also forced Facebook to implement stronger privacy controls and compliance measures. However, some critics argue that the fine was not enough considering the scale of the data breach and Facebook's financial capacity. Overall, the ruling was fair but highlighted the need for stronger global data protection regulations.

3. How to avoid similar legal problems?

To avoid legal problems like this in the future, companies should enforce stricter data access controls and thoroughly vet third-party applications before allowing them to collect user information. Transparency must be prioritized by clearly informing users how their data will be used and obtaining explicit consent. Regular privacy audits and monitoring

tools should be used to detect unauthorized data collection early. Companies should also train employees to follow privacy laws and ethical standards in data handling. By implementing these measures, organizations can maintain user trust and reduce legal risks.

References

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